

5	30-2024-01421727 Campuzano vs. Sepulveda Building Materials, Inc.	The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is CONTINUED to November 2, 2026 at 1:30 p.m.in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. The parties must also provide redlined versions of any revised documents and revised settlement provisions. The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$800,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. Option (b) in paragraph 7 of the settlement (permitting defendant to "roll[] back" the Class and PAGA Periods should be removed. 2. All settlement approvals require plaintiff to disclose whether any fee-sharing or referral agreements apply to the action. CRC, rule 3.769. Plaintiff has failed to do so. 3. The "Released Parties" provision (§ 1.40) is vague and overbroad to the extent it includes unidentified third parties including "subsidiaries, affiliates, joint venturers, and licensees" and "agents, and successors and assigns." 4. The "Release by Participating Class Members" (§ 5.1) is vague and overbroad to the extent it includes "debts, liabilities, demands, obligations, penalties, guarantees, costs, expenses, attorney's fees, damages." 5. The "Release by Aggrieved Employees" does not provide an effective date. § 5.2.

		6. The court prefers a 60-day period for class members to opt-out, object or submit any disputes. ¶¶ 6.12.1, 6.12.2, 6.12.3, 6.4.1 unless there are special circumstances here that warrant a shorter period? In addition, the “Response Deadline” in paragraph 1.42 should be 60 days and include disputes. 7. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. At final approval, plaintiff’s counsel should address whether any such unique circumstances exist here. 8. While the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. At final approval, plaintiff should address whether any such unique circumstances exist here. Plaintiff should also provide his anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). <u>As to the notice:</u> 9. The notice should be revised consistent with the above. ROA 59 Ex. 1(A). 10. A service award is not intended to be compensation for a “General Release.” § 3 bullet. 11. Include the PAGA penalty distribution percentages. § 3 bullet. 12. Include the dollar amount of estimated attorneys’ fees. § 3 bullet. 13. Disclose the proposed installment plan, why it is necessary, and when payments will be sent. § 3. 14. The same issues above pertain to the definitions of “Released Parties” and “Released Class Claims.” § 4. 15. Section 11 should inform the class and aggrieved employees the final judgment will be posted to the
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		website and the case documents can be accessed for at least 180 days following its entry by the court. <u>As to the proposed order:</u> 16. The proposed order should be revised consistent with the above. ROA 53. 17. The document footer should mirror the document title, i.e., “and PAGA Settlement.” 18. Paragraph 3 appears to provide that \$50,000 will be paid upon entry of the order, which is inconsistent with the settlement. If that is not the intent, the paragraph should be deleted. 19. Include the terms of the installment plan. ¶ 6. 20. The same issues above pertain to the definitions of “Released Parties” and “Released Class Claims.” ¶ 6. 21. Remove plaintiff’s release. ¶¶ 6(b), (i). 22. “Action” is misspelled. ¶ 10. 23. The same issues above apply to the Response Deadline.” ¶ 14. 24. Propose a date for a final approval hearing. ¶ 14. 25. Delete paragraph 17. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any revised settlement documents and file a proof of service.
6	30-2024-01423919 McCain vs. Infinitie Electronics International, Inc.	The hearing on plaintiff’s motion for preliminary approval of a class action and PAGA settlement is CONTINUED to October 26, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. The parties must also provide redlined versions of any revised documents and revised settlement provisions.